

SENATE No. 1258

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to safe driving and open containers.

PETITION OF:

NAME:

Bruce E. Tarr

DISTRICT/ADDRESS:

First Essex and Middlesex

SENATE No. 1258

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 1258) of Bruce E. Tarr for legislation relative to possession of narcotics and marihuana in motor vehicles. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1119 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to safe driving and open containers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 90 of the General Laws is hereby amended after Section 24I by inserting the
2 following new section:-

3 Section 24I½. Possession of narcotic drugs and marihuana in motor vehicles.

4 Whoever, upon any way or in any place to which the public has a right of access, or upon
5 any way or in any place to which members of the public have access as invitees or licensees,
6 possesses a narcotic drug or marihuana, as defined in Section 1 of Chapter 94C of the General
7 Laws, in the passenger area of any motor vehicle, as defined by Section 24I of Chapter 90 for the
8 General Laws, except within a closed bottle, bag, or other container, shall be punished by a fine
9 of not less than \$100 nor more than \$500.